



**Order under Section 89
Residential Tenancies Act, 2006**

Citation: Drewlo Holdings Inc. v Dickson, 2025 ONLTB 96762

Date: 2025-12-18

File Number: LTB-L-019527-25

In the matter of: 716, 848 BLYTHWOOD RD
LONDON ON N6H0K8

Between: Drewlo Holdings Inc. Landlord

And

Calvin Dickson Former Tenants
David Dickson

Drewlo Holdings Inc. (the 'Landlord') applied for an order requiring Calvin Dickson and David Dickson (the 'Former Tenants') to pay the Landlord's reasonable out-of-pocket costs that the Landlord incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Former Tenants, another occupant of the rental unit or someone the Former Tenants permitted in the residential complex.

This application was heard by videoconference on November 4, 2025.

Only the Landlord's Legal Representative Susan Pelton and the Landlord's witness Chrissy Bryan attended the hearing.

As of 10:04 am, the Former Tenants were not present or represented at the hearing although properly served with notice of this hearing by the Landlord. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence

Determinations:

1. As explained below, the Landlord proved the allegations contained in the application on a balance of probabilities. Therefore, the Former Tenants must pay to the Landlord \$2,034.10.
2. I am satisfied that the Landlord served the Former Tenant with the application and Notice of Hearing at least 30 days before the hearing in accordance with Rule 3.3 of the LTB's Rules of Procedure.
3. These documents were served on June 6, 2025, by delivery to the Former Tenants' new address.
4. The Former Tenants vacated the rental unit on July 31, 2024.

Willful Damage - Carpet

5. The Former Tenants moved into the unit in Oct of 2021. The Tenants had given their 60day notice and the Landlord's agents went over the move-out expectations with the Former Tenants. The Former Tenants were advised that the carpet need to be steam-cleaned upon their vacancy.
6. Upon inspecting the unit after the Former Tenants vacated, the Landlord's agent learned that the carpet had not been cleaned and had a number of boot stains. On September 24, 2024, the Former Tenants were advised about the costs but never responded.
7. The total cost of the replacement carpet was \$2,640.13 however, the Landlord is seeking \$1,848.10 to account for depreciation. I find this amount reasonable and find that Landlord mitigated their losses as required under s. 16 of the *Residential Tenancies Act, 2006* (the 'Act').
8. Based on the Landlord's uncontested evidence, I am satisfied on a balance of probabilities that the Former Tenants, another occupant of the rental unit or a person whom the Former Tenants permitted in the residential complex wilfully or negligently caused undue damage to the rental unit or residential complex.
9. The Landlord incurred reasonable costs of \$1,848.10 to repair the damage and replace property that was damaged and cannot reasonably be repaired.

Last Month Rent Deposit

10. There is no last month's rent deposit.

It is ordered that:

1. The Former Tenants shall pay to the Landlord \$1,848.10, which represents the reasonable costs the Landlord incurred as a result of the damage.
2. The Former Tenants shall also pay to the Landlord \$186.00 for the cost of filing the application.
3. The total amount the Former Tenants owe the Landlord is \$2,034.10*. See Schedule 1 for the calculation of the amount owing.
4. If the Former Tenants do not pay the Landlord the full amount owing on or before December 29, 2025, the Former Tenants will start to owe interest. This will be simple interest calculated from December 30, 2025, at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Jagger Benham

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

* Refer to the attached Summary of Calculations.

Schedule 1 SUMMARY
OF CALCULATIONS

Amount the Former Tenants must pay the Landlord:

Damage Costs	\$1,848.10
Application Filing Fee	\$186.00
Total amount owing to the Landlord	\$2,034.10